

Court No. - 3

Case :- WRIT - C No. - 22971 of 2011

Petitioner :- Smt. Vijai Laxmi

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Rameshwar Nath,Randhir Jain

Respondent Counsel :- C.S.C.,Anubhav Shukla

Hon'ble Amitava Lala,J.

Hon'ble Ashok Srivastava,J.

As prayed let it appear on 2.5.2011 in the list of supplementary fresh cases in order to enable the learned counsel appearing for the power corporation to obtain instruction.

Order Date :- 21.4.2011

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Hon'ble Amitava Lala, J.

Hon'ble Ashok Srivastava, J.

The petitioner's contention before us is that respondent nos. 2 & 3 be directed to give the electricity connection to her in pursuance of her application to which the respondents-corporation have contended before this Court that there is an office report dated 3.5.2011 indicating that one electricity connection is there in the petitioner's premises. The petitioner has contended before us that since there is no electricity connection in her premises how the electricity can be supplied to the petitioner in her premises. In any event, from the bill dated 15.4.2011 we find that the name of the petitioner exists in the bill and the connection was disconnected on 29.4.2011. Bill dated 15.4.11 does not support the petitioner's contention.

Therefore, we have no other alternative but to keep the photocopies of these documents with the record and direct the petitioner to make necessary application under clause 7.10 of U.P. Electricity Supply Code, 2005 for redressal of her grievance by the appropriate authority. If such an application is made to the authority by the petitioner within seven days from the date of obtaining a certified copy of the order then the same will be considered and disposed of within a period of fifteen days thereafter.

In any event, if the authority finds the cause of the petitioner is genuine then in that case the authority is directed to give necessary electricity connection immediately thereafter.

The writ petition is accordingly disposed of at the stage of admission, however, without imposing any cost.

Order Date :- 6.5.2011

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